the collector, the address of the payee shall be shown as in care of the address of the authorized person. If a power of attorney is on file with the collector, the address of the payee may be shown as in care of the address of such attorney if requested.

(b) No signed or unsigned notice of refund of internal-revenue tax, other than the original, shall be issued unless the original notice of refund is not received or is lost, in which case the person named on such notice may apply to the collector of customs for the issuance of a duplicate. Such application shall be by affidavit identifying the notice of refund; citing the kind, number, and date of each entry, and the amount of refund due; and definitely stating that the original notice of refund has not been and will not be included in any claim for refund and if later located will be returned to the collector of customs for cancelation. If application is acceptable to the collector of customs, he shall prepare from the retained copy an exact transcript thereof as to numbers, dates, amounts and signatures; shall certify it as to its issuance as a duplicate; and without rescheduling, shall transmit it to the applicant for use in lieu of the original. The application bearing a notation as to the date and fact of issuance of the duplicate shall be attached to the retained copy of the notice of refund from which the duplicate was prepared.

(c) Refunds of excessive duties or taxes shall be certified for payment to the importer of record unless a transferee of the right to withdraw merchandise from bonded warehouse is entitled to receive the refund under section 557 (b), Tariff Act of 1930, as amended, or an owner's declaration has been filed in accordance with section 485 (d), Tariff Act of 1930. The certification of a refund for payment to a nominal consignee may be made prior to the expiration of the 90-day period within which an owner's declaration may be filed as prescribed in section 485 (d) of the tariff act, provided the nominal consignee waives in writing his right to file such declaration. If an owner's declaration has been duly filed, the refund shall be certified for payment to the actual owner who executed the declaration, except that, whether or not an owner's declaration has been filed and regardless of any revocation of the transfer, refunds shall be certified for payment to the transferee if the moneys with respect to which the refund was allowed were paid by such transferee and the right to withdraw the involved merchandise from warehouse was transferred to him on or after July 25, 1938.

(d) If the nominal consignee has become bankrupt, refunds of duties on merchandise entered in the name of such nominal consignee for the account of the actual owner shall be withheld from payment pending the receipt of a claim therefor and the establishment of rights thereto, unless the declaration of the actual owner has been filed with the collector under section 485 (d), Tariff Act of 1930.

(e) A claim for refund of internal-revenue taxes collected in excess of the amount found due on the liquidation or reliquidation of an entry shall be filed on internal-revenue Form 843 in duplicate by the person named on the notice of refund, in his name, with the collector of internal revenue for the internal-revenue district in which the claimant resides. The notice of refund shall be attached to and filed in support of such claim. Internal-revenue Form 843 may be procured from collectors of customs or collectors of internal revenue.

(f) Each claim for refund of internal-revenue taxes shall be confined to refunds under entries filed in the same customs collection district. Item 1 shall show the number of the customs district and the name of the headquarters port of the customs district in which the notice of refund was issued. Item 3 shall show the character of the tax, for example, "Internal-Revenue Tax on Imported Distilled Spirits and Wines." Item 6 shall show the total amount of all notices of refund included in the claim. Items 2, 4, 5, 7, and 8 need not be completed. The reason why the claim should be allowed may be briefly stated in language indicating that internal-revenue taxes were paid to the collector of customs in excess of the tax found due the Government upon the liquidation or reliquidation of entries for which notices of refund were issued by the collector of customs at _____. This statement shall be followed by a tabulation of all notices of refunds included in the claim, showing the serial number and date of the notice of refund, the kind, number, and date of each entry, the amount of refund due, and the port at which the entries were filed. If the space on the claim is insufficient to list each entry on which a refund is claimed, the tabulation shall be listed or continued on letter-sized sheets which shall be securely attached to and made a part of the claim. The certificate of the collector of internal revenue on the back of the form is not required. (R. S. 161, 251, sec. 624, 46 Stat. 759; 5 U. S. C. 22, 19 U. S. C. 66, 1624)

§ 24.70 *Claims; deceased or incompetent public contractors.* Claims for payments due deceased or incompetent public contractors for articles furnished or services performed shall be submitted to the customs contracting officer at whose order the articles were furnished or the services performed. The contracting officer shall forward such claims to the Bureau of Customs, Attention: Division of Fiscal Administration, for administrative examination prior to transmission to the General Accounting Office for settlement. Applications for settlement of such claims shall be prepared on standard Form 1055. Originals or certified copies of any documents and papers necessary to establish the claimant's right to the moneys due, together with the recommendation of the customs field administrative officer concerned, shall be submitted in support of each claim. (R. S. 161, sec. 624, 46 Stat. 759; 5 U. S. C. 22, 19 U. S. C. 1624)

§ 24.71 *Claims for personal injury or damages to or loss of privately owned property.* Procedures for the settlement of claims arising from actions of Treasury Department employees are published in 31 CFR, Part 3. (R. S. 161, sec. 2, 42 Stat. 1066, secs. 401–424, Pub. Law 601, 70th Cong., 60 Stat. 842; 5 U. S. C. 22, 31 U. S. C. 215)

§ 24.72 *Claims; set-off.* When an importer of record has a judgment or other claim allowed by legal authority against the United States, and he is indebted to the United States either as principal or surety, the collector shall not certify for payment so much of such judgment or claim as will equal the amount of the debt due the Government and shall report the facts to the Bureau for instructions. (R. S. 161, sec. 624, 46 Stat. 759; 5 U. S. C. 22, 19 U. S. C. 1624)

§ 24.73 *Miscellaneous claims.* Every claim of whatever nature arising under the customs laws which is not otherwise provided for shall be forwarded directly to the Bureau, together with all supporting documents and information available. (R. S. 161, sec. 624, 46 Stat. 759; 5 U. S. C. 22, 19 U. S. C. 1624)

PART 25—CUSTOMS BONDS

NOTE: Executive Order 9470, Aug. 25, 1944, 3 CFR, 1944 Supp., ch. II, provides in part as follows:

1. The amount of the bond of a collector of customs shall be not less than ten *per centum*, as determined by the Secretary of the Treasury, of the average monthly collections of the respective customs district for the fiscal year next preceding that in which the bond is given: *Provided*, That the amount of such bond shall not be more than $100,000 except in the discretion of the Secretary, and shall not be less than $10,000.

2. Such bonds shall be in multiples of one thousand dollars, and any fractional part of the required amount shall be covered by an additional multiple of one thousand dollars.

3. An examination of the bonds of collectors of customs for the purpose of ascertaining the sufficiency of the sureties and adjusting the amounts of such bonds shall be made at least every two years and as much oftener as may be deemed necessary by the Secretary of the Treasury.

Sec.

25.1 Classes of bonds.
25.2 Bonds approved by the Secretary of the Treasury; form and execution.
25.3 Bonds approved by Commissioner of Customs; form and execution.
25.4 Bonds approved by collectors; form and execution.
25.5 General instructions.
25.6 Seal.
25.7 Partnerships as principals.
25.8 Corporations as principals.
25.9 Individual sureties.
25.10 Delinquent sureties.
25.11 Partners as sureties.
25.12 Corporate sureties.
25.13 Same party as principal and surety; attorney.
25.14 Acceptance of cash deposits or obligations of the United States in lieu of sureties on bonds.
25.15 Export bonds; cancelation.
25.16 Bonds for production of missing documents; card memorandum; time for production of documents.
25.17 Nonproduction of documents; failure to redeliver packages; sums to be collected.
25.18 Extension of periods for compliance with bond requirements.

§ 25.1 *Classes of bonds.* All bonds required to be given under the customs statutes or customs regulations shall be